

District- Jessore

**In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)**

Present:

Mr Justice Md Atoar Rahman

Civil Revision No. 157 of 2017

Md. Ali Asgor

... pre-emptee appellant petitioner

- versus-

Md. Abdul Mannan and others

...pre-emptor respondent opposite party

Mr. Muhammad Hassan Shaheed
Quamruzzaman, Advocate

... for the pre-emptee appellant petitioner

Mr. Md. Ekramul Islam, Advocate

... for the pre-emptor respondent opposite party

Heard on: 16.01.2024, 17.01.2024

Judgment on: 30.01.2024

This Rule was issued on an application under section 115(1) of the Code of Civil Procedure, 1908 calling upon the opposite party No. 1 to show cause as to why the impugned judgment and order dated 13.10.2016, passed by the learned Additional District Judge, 1st Court, Jessore in Miscellaneous Appeal No. 17 of 2015 dismissing the appeal and modifying the judgment and order dated 10.05.2015, passed by the learned Assistant Judge, Sadar Court, Jessore in Miscellaneous Case No. 36 of 2002 should not be set aside and/or passed such other or further orders as to this court may seem fit and proper.

During issuance of the Rule an order was passed staying operation of the impugned judgment and order.

The short facts for the purpose of disposal of the Rule are that the opposite party No. 1, Md. Abdul Mannan filed an application seeking pre-emptee under section 96 of the State Acquisition and Tenancy Act, 1950 against the transfer of the case land by the registered deed of sale being No. 3612 dated 19.03.2002 executed by the opposite parties No. 2 to 5 in favour of the opposite party No 1 pre-emptee-petitioner for .0887 acres of agricultural land as described in the schedule to the petition stating inter alia that the pre-emptor-present opposite party No. 1 was co-sharer by inheritance in the case holding. On 19.03.2002, the opposite parties No. 2 to 5 transferred the case land to the pre-emptee-petitioner, who was stranger to the case holding, without serving any notice under section 89 of the State Acquisition and Tenancy Act 1590. Hence the case for pre-emption was filed in the court of Assistant Judge, Sadar, Jessore.

The petitioner as pre-emptee opposite party No.1 contested the case by filing written objection denying all the material allegations made in the application stating inter alia the case was bad for defect of parties and barred by limitation and principle of weaver and acquiescence. It was also contended that after purchase the pre-emptee-purchaser improved the case land by spending Tk. 2,62,000.00.

On consideration of the facts and circumstances of the case and the materials on record the learned Assistant Judge allowed the pre-emption application holding that the pre-emptor was co-sharer by inheritance and the pre-emptee opposite party was a stranger in the case holding, the case was not bad for defect of parties and not barred by limitation and principal of weaver and acquiescence. The learned Assistant Judge also found that after purchase of the case land and before receiving the notice, the pre-emptee purchaser developed and improved the case land by spending Tk. 10,000.00 and, as such, he directed the pre-emptor to submit such amount as development cost and directed the pre-emptee-petitioner for giving registered deed of sale in favour of the pre-emptor.

Being aggrieved by the above judgment and order passed by the learned Assistant Judge the pre-emptee petitioner preferred Miscellaneous Appeal No. 17 of 2015 before the learned District Judge, Jessore. On the other hand, the pre-emptor opposite party filed a cross objection against the order in respect of giving direction of registered sale deed passed by the learned Assistant Judge. On transfer the miscellaneous appeal and the cross-objection were heard by the learned Additional District Judge, 1st Court, Jessore who disallowed the miscellaneous appeal and allowed the cross objection and modified the judgment and order passed by the learned Assistant Judge by his judgment and order dated 13.10.2016.

Being aggrieved by and dissatisfied with the above judgment and order in respect of disallowing the miscellaneous appeal passed by the learned Additional District Judge, 1st Court, Jessore the pre-emptee-appellant moved this court under section 115 (1) of the Code of Civil Procedure and obtained the present Rule and order of stay.

Mr. Muhammad Hassan Shaheed Quamruzzaman, the learned Advocate appearing on behalf of the petitioner has submitted that learned Judge of the trial court without going through the evidence and facts and circumstances of the case fixed only taka 10,000.00 (ten thousand) for improvement cost and the learned Judge of the appellate court also committed an error of law occasioning failure of justice which cannot be sustainable in law.

Mr. Md. Ekramul Islam, the learned Advocate appearing on behalf of the opposite party No. 1 has opposed the Rule.

I have heard the submissions placed by the learned Advocates for both the sides and perused the record along with the impugned judgment and other connected papers.

On perusal of the record it appears that the learned trial Judge as well as learned Judge of the appellate court concurrently found that the pre-emptor-opposite party was a co-sharer by inheritance in the case holding, the case is not bad for defect of parties and barred by

limitation. Learned Advocate for the petitioner did not make any submission against such findings.

Learned Advocate for the petitioner has submitted only on one point which is fixation of development cost of taka 10,000.00 (ten thousand) by the learned trial Judge is not proper. He has submitted that actually after purchase and before receiving the notice of the pre-emption case pre-emptee-petitioner developed the case land by spending taka 2,62,000.00 only.

Learned trial Judge found that accept commissioner's report there is no evidence that the pre-emptee after purchase developed the case land by spending Tk. 2,62,000.00. Though the commission report was not exhibited as per the provisions of law but learned trial Judge has taken into consideration the commissioner's report and after considering the same held that after purchase the pre-emptee improved the case land by erecting house spending taka. 10,000.00 (ten thousand). Learned Judge of the appellate court also found that the amount fixed by the learned trial Judge as improvement cost was correct. Learned Advocate for the petitioner could not show that the amount fixed by the learned trial judge for development cost is not incorrect and it can be enhanced.

In view of the above discussions and facts and circumstances of the case, I do not find any substance and merit in the Rule and accordingly, it is liable to be discharged.

In the result, the Rule is discharged without any order as to cost. The impugned judgment and order dated 13.10.2016 is affirmed and the order of stay granted at the time of issuance of the Rule is hereby vacated.

Let the lower courts' records along with a copy of this judgment be transmitted at once.